

DEFENDANT: CONRAD ROCKENHAUS
CASE NUMBER: 4:19-CR-00181-ALM-CAN(1)

SCHEDULE OF PAYMENTS

Having assessed the defendant's ability to pay, payment of the total criminal monetary penalties is due as follows:

- A ☒ Lump sum payments of \$564,733.00 due immediately, balance due
☐ not later than _____, or
☒ in accordance ☐ C, ☐ D, ☐ E, or ☒ F below; or
- B ☐ Payment to begin immediately (may be combined with ☐ C, ☐ D, or ☐ F below); or
- C ☐ Payment in equal _____ (e.g., weekly, monthly, quarterly) installments of \$ _____ over a period of _____ (e.g., months or years), to commence _____ (e.g., 30 or 60 days) after the date of this judgment; or
- D ☐ Payment in equal 20 (e.g., weekly, monthly, quarterly) installments of \$ _____ over a period of _____ (e.g., months or years), to commence _____ (e.g., 30 or 60 days) after release from imprisonment to a term of supervision; or
- E ☐ Payment during the term of supervised release will commence within _____ (e.g., 30 or 60 days) after release from imprisonment. The court will set the payment plan based on an assessment of the defendant's ability to pay at that time; or
- F ☒ Special instructions regarding the payment of criminal monetary penalties:
It is ordered that the Defendant shall pay to the United States a special assessment of \$100.00 for Count 1, which shall be due immediately. Said special assessment shall be paid to the Clerk, U.S. District Court. Any monetary penalty that remains unpaid when your supervision commences is to be paid on a monthly basis at a rate of at least 10% of your gross income. The percentage of gross income to be paid with respect to any restitution and/or fine is to be changed during supervision, if needed, based on your changed circumstances, pursuant to 18 U.S.C. § 3664(k) and/or 18 U.S.C. § 3572(d)(3), respectively. If you receive an inheritance, any settlements (including divorce settlement and personal injury settlement), gifts, tax refunds, bonuses, lawsuit awards, and any other receipt of money (to include, but not be limited to, gambling proceeds, lottery winnings, and money found or discovered) you must, within 5 days of receipt, apply 100% of the value of such resources to any financial penalty ordered. Any and all monetary penalties imposed by the Court are due and payable immediately by cashier's check or money order made out to the U.S. District Court and shall be forwarded to the U.S. District Court, Fine and Restitution Section, 211 West Ferguson Street, Room 106, Tyler, Texas 75702.

Unless the court has expressly ordered otherwise, if this judgment imposes imprisonment, payment of criminal monetary penalties is due during imprisonment. All criminal monetary penalties, except those payments made through the Federal Bureau of Prisons' Inmate Financial Responsibility Program, are made to the clerk of the court.

The defendant shall receive credit for all payments previously made toward any criminal monetary penalties imposed.

- ☐ Joint and Several
See above for Defendant and Co-Defendant Names and Case Numbers (including defendant number), Total Amount, Joint and Several Amount, and corresponding payee, if appropriate.
- ☐ Defendant shall receive credit on his restitution obligation for recovery from other defendants who contributed to the same loss that gave rise to defendant's restitution obligation.
- ☐ The defendant shall pay the cost of prosecution.
- ☐ The defendant shall pay the following court cost(s):
- ☐ The defendant shall forfeit the defendant's interest in the following property to the United States:

Payments shall be applied in the following order: (1) assessment, (2) restitution principal, (3) restitution interest, (4) AVAA assessment, (5) fine principal, (6) fine interest, (7) community restitution, (8) JVT Assessment, (9) penalties, and (10) costs, including cost of prosecution and court costs.

EXHIBIT F

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF MICHIGAN
SOUTHERN DIVISION

UNITED STATES OF AMERICA,

Plaintiff,

vs.

Case No. 23-20701

Hon. Stephen J. Murphy, III

CONRAD ROCKENHAUS,

Defendant.

SENTENCING

BEFORE THE HONORABLE STEPHEN J. MURPHY, III
United States District Chief Judge
Theodore Levin United States Courthouse
231 West Lafayette Boulevard
Detroit, Michigan 48226
Friday, October 17, 2025

APPEARANCES:

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United States of America:

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To obtain a certified copy of this transcript, contact:
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Official Court Reporter
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EXHIBITSIdentificationOfferedReceived

NONE

1 Detroit, Michigan

2 Friday, October 17, 2025

3 - - -

4 (Proceedings commenced at 1:12 p.m., all parties
5 present)

6 THE CLERK: All rise. United States District Court
7 for the Eastern District of Michigan is now in session, the
8 Honorable Chief Judge Stephen J. Murphy, III presiding.

9 The Court calls criminal matter 23-20701, United
10 States of America versus Conrad Rockenhaus. Date and time is
11 set for sentencing on the supervised release violations.

12 Counsel, please state your appearances for the record
13 beginning with the government.

14 MS. LAMBERT: Good afternoon, Your Honor. Corinne
15 Lambert appearing on behalf of the United States.

16 THE COURT: Welcome.

17 MR. PLOTKIN: Good afternoon. Sanford Plotkin
18 appearing with Conrad Rockenhaus, Your Honor.

19 THE COURT: Okay. Welcome to you. Everybody may be
20 seated. Thank you all for being here.

21 On Tuesday we were in court. Prior to that I had
22 learned, and I think I mentioned when we were together last
23 time, outside of this case there were a number of submissions
24 that had been made by Mr. Rockenhaus and his wife. I -- and
25 then I received a letter in support of his position on

1 sentencing in the probation violation matter that we were
2 originally here to conduct sentencing on. And given the fact
3 that I had about an hour to look at the letter from Ms.
4 Rockenhaus and to determine how to handle that in connection
5 with these other submissions that I was aware of, I -- I took
6 an adjournment. I reflected a little bit on the matter and
7 tried to figure out what to do. I consulted with the
8 Administrative Office of U.S. Courts' Office of General Counsel
9 and I'm prepared to proceed now.

10 28 USC Section 455(a), as we all know, mandates that
11 a judge must disqualify himself in any proceeding in which his
12 impartiality might reasonably be questioned. We spoke at some
13 length, maybe a little length, not a lot, but at some -- had
14 some discussion on Tuesday about my impartiality. Neither side
15 had questioned it to -- to that point or moved for recusal, and
16 indeed no one's moved for recusal of my involvement in this
17 case to date.

18 I don't think based on all the research that I did
19 that a recusal is warranted here. Let me go through the -- the
20 background if I could. Mr. Rockenhaus filed a civil suit
21 against three probation officers who work in the Eastern
22 District of Michigan. That's Eastern District of Michigan U.S.
23 District Court Case No. 25-12716, civil case. Shortly after
24 that, Mrs. Rockenhaus, Adrienne, who is Mr. Rockenhaus's wife,
25 filed her own civil suit against the same three probation

1 officers and an unnamed United States marshal. That is
2 25-12736.

3 I want to say I haven't looked at the pleadings. I'm
4 generally aware of the -- of the allegations, but I -- I don't
5 have any interest in or knowledge of what's going on in those
6 cases. I was advised of them and asked whether or not I would
7 recuse myself from hearing those civil cases, and I said yes, I
8 would because my impartiality to hear a civil case involving an
9 individual before me on a probation violation against our --
10 our U.S. probation officers is something that my partiality
11 would no doubt be in -- in question. So I'm not going to be
12 involved in any way in the -- in the civil suits.

13 And then there was a -- a -- a complaint for judicial
14 misconduct filed against me by Mrs. Rockenhaus which I
15 referenced. That's pending in Cincinnati. And I received an
16 email, I guess there was a copy of it in the email but I didn't
17 look at it because, you know, when you have parties in -- in
18 cases like this one who have individuals in their families
19 filing complaints against me, it's up to the Sixth Circuit and
20 the judicial council to determine what to do there. I'm a
21 member of the judicial council, but obviously I'll be
22 disqualified from participation in resolving that judicial
23 complaint.

24 I do not have any connection outside of a
25 professional one with the defendants in the two civil suits --

1 Mr. Agapiou, Mr. Konal, Mr. Dion Thomas -- and again, I don't
2 have any personal knowledge of the dispute between Mr.
3 Rockenhaus, Ms. Rockenhaus and those -- and those officers,
4 have not read or reviewed the complaints.

5 As to the judicial misconduct complaint, I haven't
6 received or been subject to any direct complaint from Mr.
7 Rockenhaus or any of his lawyers about my conduct in this or
8 any other case. As I mentioned in a text order I sent out on
9 Wednesday, I have determined from the Committee on Codes of
10 Conduct -- I should say Judicial Conference Committee on the
11 Codes of Conduct that guidance and an advisory opinion exists
12 that's able to I think guide my participation in this matter.

13 Advisory Opinion No. 103 of the Judicial Conference
14 Committee on Codes of Conduct is public, available to any
15 member of the public and -- and of course me as a federal
16 judge. It noted that when faced with a misconduct complaint,
17 quote, "Important reasons exist for a judge not to disqualify
18 routinely as this would permit and might even encourage
19 litigants to manipulate and abuse the judicial process which
20 could undermine public confidence in the integrity of the
21 judiciary." Close quote.

22 Advisory Opinion 103 concerned an initiation of a
23 judicial misconduct complaint by a litigant while a case that
24 the litigant had before the complained of judge was pending.
25 It noted, the advisory opinion in that case, that, quote,

1 "Recusal is unnecessary most of the time." Close quote.

2 And I -- I would say the following. Mr. Rockenhaus
3 has not filed a complaint against me. His wife filed a
4 complaint against me. The submission of a misconduct complaint
5 against me as a judge in this case by a family member of a
6 defendant is, in my opinion, too attenuated to create a
7 situation where my impartiality might be reasonably questioned,
8 and doesn't rise to the bar where the prudential concerns that
9 I mentioned earlier -- litigants who might want to manipulate or
10 abuse a judicial process or undermine public confidence in the
11 integrity of the judiciary -- would be triggered.

12 If -- if Ms. Rockenhaus were in front of me, I would
13 have a different view of things, but Mr. Rockenhaus is
14 obviously not his wife, and I -- and I feel like my sentencing
15 of him here subsequent to the probation violations which have
16 been lodged should not, in balance, give the public cause about
17 my ability to impartially resolve his -- his matter.

18 Now, I did, as I mentioned, receive a letter from Ms.
19 Rockenhaus regarding her sentence or her husband's sentencing.
20 That's very, very common. And it was a good letter that I've
21 read. I'll give it appropriate weight in my consideration of
22 all the sentencing factors. And I -- I fully intend to
23 sentence Mr. Rockenhaus on the -- on the violations and the
24 record I have before me and not based on any sort of undue
25 reliance upon, or even consideration of, any of these

1 outside -- outside filings.

2 The -- the -- the advisory opinion advises pretty
3 clearly that a federal judge should wait for the outcome of a
4 misconduct complaint before engaging in sentencing, but again,
5 that -- that -- that advice is given when a litigant files a
6 judicial complaint. I could certainly wait for a decision from
7 the chief judge of the Sixth Circuit and/or the judicial
8 conference before I sentence Mr. Rockenhaus. I don't know what
9 the outcome would be of that. They might recuse me ultimately.
10 I don't take a position on that.

11 But at this time I don't see a conflict or an
12 appearance of a conflict between myself and Mr. Rockenhaus
13 regarding any litigation that's currently in place or any
14 judicial complaints. Mr. Rockenhaus took responsibility for
15 the initial violations. He was detained as a result of
16 violating the bond he was given in the wake of those
17 violations, and he's been -- he's been in detention waiting for
18 this sentencing, which I'm willing to go forward with.

19 But I would just ask both lawyers from the United
20 States and the defendant's side if there are any objections
21 based on everything I just said and the balance of the record
22 of the case, if there's any objections with me going forward
23 with a sentencing of Mr. Rockenhaus at this time. Let's start
24 with the government.

25 MS. LAMBERT: The government has no objections, Your

1 Honor.

2 THE COURT: Mr. Plotkin?

3 MR. PLOTKIN: I just consulted with my client and he
4 said he is ready to proceed based on the record.

5 THE COURT: Okay. All right. Come on up to the
6 microphone if you would and --

7 MR. PLOTKIN: Like us to approach the podium?

8 THE COURT: Yes, please.

9 MR. PLOTKIN: Thank you.

10 THE COURT: And we'll dispose of everything.

11 All right. I gave a lengthy overview of the case.
12 Mr. Lakin was removed. Mr. Plotkin came in. I -- I reviewed
13 everything at issue in the case. I don't need to go over that
14 again.

15 Mr. Plotkin has now had time to look at the
16 violations. The violations are Grade C in nature, and the
17 sentencing guideline range at the Criminal History Category in
18 which Mr. Rockenhaus finds himself, which is III, would be five
19 to 11 months. Those are advisory. And I'm happy to hear
20 anything at this time as to sentencing, Mr. Plotkin.

21 MR. PLOTKIN: Thank you.

22 THE COURT: Thank you.

23 MR. PLOTKIN: So obviously this is a very charged
24 case, situation. I was appointed by the Federal Defender
25 Office last week; well, on the eve of the original sentencing

1 date. I've lost a little track of time.

2 THE COURT: Mm-hmm.

3 MR. PLOTKIN: So I didn't have a chance to consult
4 with Mr. Rockenhaus obviously that evening. I did in the --
5 the lockup the following morning. I believe that was last
6 Tuesday.

7 THE COURT: Mm-hmm.

8 MR. PLOTKIN: And I encountered a very concerned,
9 respectful -- I suppose I want to highlight the word
10 respectful -- man in the lockup that I was speaking to. And he
11 made it clear on that first visit in the lockup, Your Honor,
12 that he understood the four corners of this situation, and
13 frankly his desire since I met him has been to resolve this and
14 to make every effort to move forward --

15 THE COURT: Mm-hmm.

16 MR. PLOTKIN: -- with his life.

17 I will say that I met him again, I believe it was
18 last Sunday, at the Milan Detention Center. I spent I don't
19 know if it was an hour and a half, two hours, a long period of
20 time, and frankly Mr. Rockenhaus was very tearful and genuine
21 in our conversations. And I really have walked away from that
22 particular meeting seeing I think a lot of attributes in this
23 man that I think sadly have gotten somewhat lost more recently
24 for various reasons.

25 I will say that Mr. Rockenhaus is -- well, let's go

1 back. He -- and I think these are all very relevant to the
2 sentencing today and to the 3553(a) factors. I have -- I did
3 send -- I believe in addition to letters, Your Honor, I believe
4 I sent --

5 THE COURT: Yes.

6 MR. PLOTKIN: -- to the Court a couple documents
7 from his --

8 THE COURT: Yes.

9 MR. PLOTKIN: -- regarding his discharge, and I think
10 it's highly relevant. We've got a man who spent from
11 December 18th of '03 through February 25 of '15 serving the
12 navy, serving this country.

13 THE COURT: Right.

14 MR. PLOTKIN: And not just serving generally. He --
15 Global War on Terrorism Service Medal, Global War on Terrorism
16 Expeditionary Medal, Armed Forces Reserve Medal, Kosovo
17 Campaign Medal, Navy Marine Corps Achievement Medal, Letter of
18 Commendation Flag, Combat Action Ribbon. Well, he's given a
19 lot to this country. He's given a lot to try and protect our
20 interests abroad and democracy abroad.

21 It left him a hundred percent disabled with a seizure
22 disorder as a result of an IED explosion that occurred in
23 Afghanistan. He will live with that for the remainder of his
24 life. It was triggered I believe during his arrest for the
25 supervised release arrest warrants, and that's something that

1 he will have to live with. The Disabled American Veterans
2 rating decision of '17 found that the seizure disorder is
3 granted with a hundred percent disability, and that
4 determination was made effective February 26th of '15, and he
5 was ultimately discharged honorably from the separation from
6 the service.

7 He's -- I think going forward, whenever the Court
8 sees fit to allow this man to go home, I think he's going to be
9 a positive contributor to whatever community he lives in
10 because it was clear to me in those couple hours last Sunday
11 how deeply concerned he is for this country. We're going
12 through I'll just say interesting times, not to get too
13 politically charged today, but he's very aware and very
14 concerned. He's concerned about democracy here and abroad but
15 particularly here.

16 He wants to get out of custody and make some kinds of
17 positive contributions. He does have difficulty obviously with
18 employment. He's a hundred percent disabled. But he has in
19 mind to do something, some things, whether it's employment,
20 whether it's charitable, whether it's voluntary contributions
21 to those causes that are so important now.

22 At the end of the day, I think Conrad Rockenhaus
23 suffers a lot of trauma. I'm sure he could benefit from
24 continuing or at least maybe beginning or continuing counseling
25 of some sort, Your Honor. If I can benefit from it, there's no

1 again. And after that the defendant caused further substantial
2 damage to that company's servers resulting in a loss of
3 approximately \$564,000.

4 The guideline range for that offense conduct were 78
5 to 97 months. However, the defendant was sentenced to
6 40 months of imprisonment followed by a three-year term of
7 supervised release, which was consistent with the terms of the
8 parties' Plea Agreement. The standard and special conditions
9 of his release included, relevant here, reporting to his
10 probation officer as directed, making restitution payments, no
11 possession or use of a controlled substance, no new lines of
12 credit, and no purchase, possession, contact with or use of a
13 device that can be connected to the Internet or used to store
14 digital materials unless approved by the U.S. Probation Office.

15 This court accepted transfer of jurisdiction in this
16 matter in December of 2023, and the defendant has proceeded to
17 violate the terms of his supervised release since then. The
18 record reflects that the defendant has not made a restitution
19 payment since December 2023. He opened seven new lines of
20 credit without approval of his probation officer. He tested
21 positive for marijuana and admitted to using THC wraps. He
22 possessed an unauthorized cellular device, and on numerous
23 occasions the defendant failed to report and respond to his
24 probation officer's attempts to contact him. Phone calls --

25 THE COURT: Does he have the -- does he have the

1 financial wherewithal to pay restitution, because sometimes we
2 see young men and women get in these situations in which they
3 have a restitution order and it's just -- it's just an exercise
4 in -- in -- in futility. I recognize factually the correctness
5 of your presentation on restitution, but I wonder what the
6 whole story is or if there's more of a story that I don't know.

7 MS. LAMBERT: Your Honor, it is my understanding that
8 at one point in or around December of 2024 he had reported
9 stable employment with his wife's company, and he also receives
10 nearly \$7,000 per month in disability compensation benefits
11 from the Department of Veterans Affairs and from the Social
12 Security Administration. Despite having these -- this income,
13 he has not made any payment since December of '23. There are
14 two bounced restitution payments on the record from this past
15 summer, but he has made no other attempt that the government is
16 aware of or that is on his record to pay any restitution or to
17 even modify the payment amount to the extent that he might be
18 having difficulty making a full payment.

19 Returning to his fail -- failure to report on
20 numerous occasions, there were phone calls, text messages,
21 voicemails, emails, attempted home visits, all went unanswered.
22 At one point the probation officer was informed that the
23 defendant was in the hospital for an extended period of time,
24 seemingly as a reason for his nonresponsiveness. However, the
25 hospital has no records related to the defendant during that

1 time. As a result, the defendant was deemed an absconder and
2 was subsequently arrested.

3 Then this past May he appeared before the Court and
4 admitted to the aforementioned violations. And it was at this
5 time that all of the parties – the defendant, the government,
6 the Probation Department and this Court – agreed that the
7 defendant deserved a second chance. That is, if he had
8 remained compliant with his conditions of supervision, he would
9 be sentenced to time served and released from supervision at
10 the end of the term in September, but we are here today because
11 that did not happen. Since then the defendant has continued to
12 violate the terms of his release.

13 And before I go any further on this, I would like to
14 clarify that the defendant has not admitted to the violations
15 that I'm about to mention, but they are relevant to why we are
16 here today and to his sentence in this matter.

17 THE COURT: Now, I take it what you're about to
18 describe is behavior between May and today, correct?

19 MS. LAMBERT: Between May and today, mostly -- mostly
20 up through August of this year.

21 THE COURT: Okay.

22 MS. LAMBERT: Before his arrest.

23 THE COURT: Okay. All right.

24 MS. LAMBERT: Yes.

25 THE COURT: That -- that's fine if you want to use

1 those materials, you know, as part of your argument. I would
2 like to be clear, as I'm sure you know, my sense of those
3 behaviors were that they gave rise to the warrant and arrest
4 that resulted in Mr. Rockenhaus's detention, and the -- the
5 bond petition and violation was disposed of upon his arrest and
6 the probation officers did not file additional violations for
7 which they want him held responsible as is sometimes customary.
8 So what you're about to talk about is relevant to your argument
9 in terms of the behavior of the defendant, but -- but that's
10 about it, correct?

11 MS. LAMBERT: That is correct.

12 THE COURT: Okay. All right. Go ahead.

13 MS. LAMBERT: And I will keep -- I will keep it
14 brief.

15 THE COURT: Go ahead. No, that's fine. Go -- go
16 ahead.

17 MS. LAMBERT: Thank you.

18 As I mentioned, he has still not paid any restitution
19 despite having the income that I just mentioned.

20 And again, especially in August he had failed to
21 respond to the probation officer on numerous occasions. He had
22 failed to update his contact information with the probation
23 officer. And when the officer was finally able to make contact
24 with him, he discovered and seized two unauthorized devices in
25 the defendant's possession and the defendant tested positive